



File No: EXP202407582

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 1, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CONSULTORIA INTEGRAL DE ENERGÍA ECOLÓGICA, S.L. (hereinafter, the respondent), through the Agreement transcribed below:

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Procedure No: EXP202407582 (PS/00411/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following,

FACTS

FIRST: On April 29, 2024, A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection (AEPD).

The complaint is directed against the entity CONSULTORIA INTEGRAL DE ENERGÍA ECOLÓGICA, S.L. with NIF: B01855550 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

"The respondent claims to be an energy consultancy that advises you to find a supply tariff for electricity and gas to reduce bills.

I filled out the form on their website <https://consultoriafuxiona.com/te-llamamos/> with my details. When they called me for the first time, they informed me of some tariffs, but I was not convinced and told them I was not interested. From that moment on, they started calling me day after day and at all hours in a massive manner. I requested multiple times that they stop calling me and delete my data; they said they took note, but the calls continued. They told me that the calls were made by an automatic machine. They also sent me messages via WhatsApp. Then I sent them an email with a request to exercise my right to erasure of all my personal data, and they replied saying they would proceed to delete my data. From that point on, the phone calls stopped, but to this day I still receive messages via WhatsApp. I wrote to them again via email warning them about this, but I have not received a response."

Along with the complaint, the following documentation is attached:

- Copy of the "PRIVACY POLICY - LEGAL NOTICE" from the website <https://fuxionabrokers.com/> (<https://fuxionabrokers.com/privacy-policy/>), where it can be read, among other issues, the following:
 - o In compliance with the information duty established in Article 10 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSICE), the owner of the website and responsible for the processing of your data informs you of the following:

Corporate name: Consultoría Integral de Energía Ecológica S.L.

NIF-807855550...

Data Protection Officer: dpo@fuxiona.es. To communicate with the Data Protection Officer, you can send an email to the indicated address...

We also inform you that you will have the possibility at all times to exercise the ARCO-POL rights: access, rectification, cancellation, opposition, limitation, and portability of your personal data, free of charge by email to: dpo@fuxiona.es or at the address: C/ Gladiolo 2- Local, 29651 – Mijas (Málaga)... Where can I exercise my ARCO-POL rights? The user may at any time exercise the ARCO-POL rights: access, opposition, rectification, cancellation, limitation, and portability recognized in the aforementioned Regulation (EU). The exercise of these rights can be carried out by the user themselves via email to: dpo@fuxiona.es or at the address: C/ Gladiolo 2- Local, C.P. 29651 – Mijas (Málaga).

- Screenshot of the conversation held on 02/01/24, via WhatsApp:

FUXIONA ENERGÍA:

Hello, I am B.B.B....

A question I didn't ask you B.B.B.:

Is the installation bulletin required to LOWER the contracted power? 16:55

Thank you very much for your message.

At this moment we cannot assist you.

Please contact us Monday to Friday from 10:00 to 15:00.

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Thank you and sorry for the inconvenience. 16:55

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Copy of the letter dated 04/01/24 addressed to the Integral Consultancy of Ecological Energy S.L. requesting:

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That all my personal data be deleted immediately and that I be notified in writing of the result of the deletion carried out. That in case my personal data has been communicated by that responsible party to other data controllers, this deletion be communicated. That in case it is agreed that the total or partial deletion requested is not appropriate, I be informed with justification in order to, if applicable, file a complaint with the corresponding Control Authority.

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Copy of the email dated 04/01/24, sent from the email address: ***EMAIL.1 to the email address: derechosarco@fuxiona.es with the Subject: Request for Right of Deletion.

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I hereby exercise my right to delete my personal data. Attached is a digitally signed request document. Please confirm receipt of this request.

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Copy of the message received on 17/01/24 via WhatsApp

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FUXIONA ENERGÍA: Click on the following link and leave a review... Comment on what you thought of our management and also help us improve to always provide you with the best service! Don't forget to MENTION ME!! ..-

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Copy of the email dated 19/01/24 sent from the email address: DPO@FUXIONA.ES FUXIONA; dpo@fuxiona.es, to the email address: ***EMAIL.1, with the Subject: REQUEST FOR RIGHT OF DELETION:

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Dear A.A.A., We have received your request for cancellation of the personal data that pertains to you and is incorporated in automated files for which this company is responsible. We inform you that it has been destroyed, canceled, or, if applicable, blocked for legally established reasons. We are committed to your privacy and data security. We remain at your disposal for any additional inquiries. Sincerely, DPO

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Copy of the messages received via WhatsApp from FUXIONA ENERGÍA:

1st March 2024

THE GOVERNMENT raises VAT to 21%. Pass my number to all your contacts to review their bills and SAVE, do not hesitate to prevent this INCREASE in your expenses. 14:15

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14th March 2024

We already have the winner of last month's draw; if you didn't leave your review, don't worry, you just have to go to Google reviews and do it in my name, and I will include you for future draws. AND REMEMBER. We continue reviewing all electricity and gas bills, PASS IT on to your contacts 14:35

19th March 2024

On April 1st, spring rates begin; send me your electricity and gas bills, and you will be able to obtain the one that best suits your needs, and if we have already done it, pass this number to your contacts so they can benefit from our free services 12:06

9th April 2024

You are still in time to activate your contract and start SAVING on your electricity and gas bills...

Today:

Spring month arrives, and with it, the new reviews for your bill; if we have not yet reviewed your electricity and/or gas bill, send it to me, and we will provide you with all the information, and if you have any acquaintance or family member who wants us to facilitate the free study of their bill, you can pass me the contact. Fuxiona, you will see that it works!!!!

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Copy of the email dated 15/04/24, sent from the email address: ***EMAIL.1 to the email address: "DPO@FUXIONA.ES FUXIONA" with the following message:

"I continue to receive messages from you via WhatsApp. I give you one last opportunity to delete absolutely ALL my data and stop contacting me through any means..."

SECOND: On 23/05/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent party for analysis and to inform, within one month, about what was stated in the complaint letter.

THIRD: On 21/06/24, a response letter was received in this Agency from the respondent entity stating the following:

1. The contact from the mobile device through which informational emails were being received prior to your consent request has been deleted and blocked, and regarding which the claimant had requested and exercised their right not to receive commercial calls.

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The sending device has been monitored to corroborate this information and it has been verified that, due to human error or a failure in the device, the phone belonging to the claimant has not been removed from the broadcast list of informational/commercial messages.

Broadcast lists are saved contact lists that allow you to send messages to many clients at the same time, and due to human error, the proper removal of this contact had not been carried out.

It is important to highlight that the Data Controller had the express consent of the applicant and that their right not to receive commercial information had been addressed in a timely manner by the Data Officer of the entity. Always under the guidelines of the established protocol for the exercise of rights that the entity has, supervised and outlined by the DPO.

The decision made regarding this complaint has been to review and examine compliance with the protocol on the exercise of rights, where the secure deletion or blocking of data is guaranteed when appropriate, through technical and organizational measures, which led to an error in the blocking.

The policy for the secure deletion or blocking of information from the entity's electronic devices includes the following elements in the management of media or devices:

- A follow-up is conducted on the company's devices, the individuals or departments responsible for them, the information they contain, and their classification.
- Devices that store data or backups of data are monitored.

2. Report on the causes that led to the incident that originated the complaint. The claimant is a client of Integral Consulting of Ecological Energy, currently active, who had requested their opposition to the sending of commercial communications and whose right had been addressed.

As stated in the file and in the evidence provided by the claimant, the request for their right was addressed in a timely manner, and consequently, their email was blocked from the various CRMs of the databases that the entity has for data storage and commercial dissemination.

Due, probably, to a technical or organizational oversight, an execution error in the protocol did not correctly block their telephone line in the sending device.

In order to prevent similar incidents from occurring again, together with the external DPO designated by the entity, the action protocol on the deletion policy was examined along with the department responsible for carrying it out to avoid future incidents.

The implementation protocols and the different phases of personal data processing have been reviewed with the Data Officer designated by the entity, specifically regarding the Customer and Potential Customer Registry, from the moment the data is obtained. The traceability was examined, as the process by which all stages, locations, or changes that personal data may undergo, for which they are responsible, can be known, in the context of a processing activity.

FOURTH: On 29/07/24, the Director of the Spanish Agency for Data Protection issued an agreement for the admission of the complaint filed, in accordance with Article 65 of the LOPDGDD.

FIFTH: According to the report collected from the AXESOR tool, the entity CONSULTORIA INTEGRAL DE ENERGÍA ECOLÓGICA, S.L. with NIF: B01855550 had a turnover of 1.4 million euros in the year 2022.

LEGAL GROUNDS

I.

Competence.

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

The fourth additional provision of the LOPDGDD establishes, regarding the "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws," that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.

Summary of the events that occurred:

In this case, the claimant states that, after providing their personal data to receive advice on energy rates, they were subjected to constant phone calls and WhatsApp messages, even after expressing their lack of interest in the services offered and repeatedly requesting the deletion of their data.

In support of their complaint, the interested party provided various documentary evidence, such as screenshots of the communications maintained via WhatsApp, copies of the emails exchanged with the entity, as well as the privacy policy and the legal notice available on the company's website.

The entity responded to this request confirming that it had proceeded to delete their data, which apparently resulted in the cessation of phone calls, but WhatsApp messages continued, prompting the claimant to insist on fully respecting their right to deletion by sending several emails to the address of the DPO listed in the "Privacy Policy" on the website of the respondent.

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On the other hand, the entity being complained about informed this Agency that it reviewed the internal protocols regarding the exercise of the rights of the interested parties, as well as the policies for

blocking and securely deleting data. A failure was detected in the application of these policies, which affected the complainant's phone number, which was not deleted properly. To prevent similar incidents from occurring, the entity adopted corrective measures, supervised by its Data Protection Officer (DPO), and reviewed the processes for managing and tracing personal data.

III.

Classification of the possible infringement committed by sending commercial communications without legitimacy.

The facts listed above, regarding the sending of commercial communications via WhatsApp without having requested or expressly authorized them, may constitute a violation of the provisions established in Article 21 of the LSSI by the entity being complained about, as it states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those that were initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.”

IV.

Proposal and Graduation of the sanction

The aforementioned infringement of Article 21 of the LSSI is classified as minor in Article 38.4.d) of that regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement.”

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According to the provisions established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

For its part, Article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions: “The amount of the fines imposed shall be graduated taking into account the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of the commission of infringements of the same nature, when this has been declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI mentioned:

- The existence of intent (paragraph a), since, despite the complainant requesting the deletion of their personal data from the entity's systems and consequently to stop sending them commercial communications, the entity continued to send commercial communications via WhatsApp even after notifying them that their personal data had been destroyed or canceled.

According to these criteria, it is deemed appropriate to impose an initial sanction of €5,000 (five thousand euros) for the infringement of Article 21.1 of the LSSI, for sending advertising messages to the complainant, without them having requested or expressly authorized them, without prejudice to what results from the instruction of the procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity CONSULTORIA INTEGRAL DE ENERGÍA ECOLÓGICA, S.L. with NIF: B01855550 for the violation of Article 21 of the LSSI, classified as minor in Article 38.4.d) of that regulation.

SECOND: TO APPOINT R.R.R. as Instructor, and S.S.S. as Secretary, if applicable, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, all of which are part of this administrative file.

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FOURTH: For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 5,000 euros (five thousand euros) for the infringement of Article 21 of the LSSI, without prejudice to what results from the instruction of this sanctioning procedure.

FIFTH: NOTIFY: this agreement to initiate the sanctioning file to the entity CONSULTORIA INTEGRAL DE ENERGÍA ECOLÓGICA, S.L., granting it a hearing period of ten working days to submit any allegations and present the evidence it deems appropriate.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, the entity may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be established at 4,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be established at 4,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be established at 3,000 euros (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If the option is taken to proceed with the voluntary payment of any of the amounts indicated above (4,000 or 3,000 euros), it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Likewise,
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You must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Authorized Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On October 10, 2024, the respondent has proceeded to pay the fine in the amount of 3000 euros using the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and

another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202407582, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to CONSULTORIA INTEGRAL DE ENERGÍA ECOLÓGICA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as stipulated in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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